

the Master shall be at liberty to proceed *ex-parte*, if he think it expedient, considering the nature of the case, so to do.

That, where the Master has proceeded *ex-parte*, such proceeding shall not in any manner be reviewed in the Master's office, unless the Master, upon a special application made to him for that purpose by a party who was absent, shall be satisfied that he was not guilty of wilful delay or negligence, and then only upon payment of all costs occasioned by his non-attendance, such costs to be certified by the Master at the time, and paid by the party or his Solicitor before he shall be permitted to proceed on the warrant to review.

That, where the party actually prosecuting a Decree or Order does not proceed before the Master with due diligence, then the Master shall be at liberty upon the application of any other party interested, either as a party to the suit, or as one who has come in and established his claim before the Master under the Decree or Order to commit to him the prosecution of the said Decree or Order, and from thenceforth neither the party making default, nor his Solicitor shall be at liberty to attend the Master as the prosecutor of the said Decree or Order.

That, when the Trustee is directed to settle a conveyance or to tax costs, in case the parties differ about same, then the parties claiming the costs, or entitled to prepare the conveyance, shall bring the bill of costs or the draft of the conveyance into the Master's office and give notice of his having so done to the other party, and at any time within six days after such notice such other party shall have liberty to inspect the same without fee, and may take a copy thereof, if he think fit, and at or before the expiration of the six days or such further time as the Master shall in his discretion allow. He shall then either agree to pay the costs or adopt the conveyance, as the case may be, or signify his intention to dispute the same; and, in case he dispute the same, the Master shall then proceed to tax the costs or settle the conveyance according to the practice of the Court.

That a creditor, whose debt does not carry interest, who shall come in and establish the same before the Master under a Decree or Order in a suit, shall be entitled to interest upon his debt at the rate of six per cent. from the date of decree out of any assets which may remain after satisfying the costs of the suit, the debts established, and the interest of such debts as by law carry interest.

That the Master shall be at liberty, upon the appointment of a Receiver, or at any time subsequent thereto, in

(38).
Review of *ex-parte* proceedings.

(40).
Course to be followed where a party, prosecuting a decree, does not proceed with due diligence.

(60).
July 1837.
Settlement of Conveyances.
Taxation of Costs.

(124).
January 1842.
Interest on debt from period of its proof.

(47).
July 1837.
Receivers.